

दुक नं. 1432
Bd. No.

क्रम सं. 008
Serial No.

1. जिला : थाना : वर्ष : प्र.सू.प्र.क्र. दिनांक :
District PS: Year FIR No. Date
2024 26/11/2024

Mumbai CBI, ACB, Mumbai RC0262024A0045

2. (1) विधान : धाराएं :
Act PC Act, 1988 Sections 13 (2) r/w 13(1) (d)

(2) विधान : धाराएं :
Act IPC Sections 120-B

(3) विधान : धाराएं :
Act Sections

(4) अन्य विधान एवं धाराएं :
Other Acts & Sections

3. (क) प्रतीत अपराध :
(a) Suspected Offence

Public servants in conspiracy with private persons abused their official position and obtained undue advantages.

(ख) दिन : दिनांक समय
(b) Day Date Time

During the year 2016 - 2017

(ग) थाने पर सूचना प्राप्त होने का दिनांक
(c) Information received at PS Date

कायमी अपराध :
Entry No. 04

दिनांक समय
Date 26/11/2024 Time 1745 Hrs.

4. सूचना का प्रकार :
Type of Information

लिखित/मौखिक
Written/Oral

Written

5. घटना का स्थान
Place of Occurrence

Mumbai, Maharashtra.

(क) थाने से दिशा व दूरी :
(a) Direction & Distance from PS

बीट नं. / Beat No.

(ख) पता:
(b) Address

(ग) घटनास्थल अन्य थाना क्षेत्राधिकार में है तो थाना -
(c) In case, outside the limit of this Police Station, then

पुलिस थाना का नाम
Name of PS

जिला
District

6. अभियोगी / सूचनाकर्ता :
Complainant / Informant

(क) नाम
(a) Name **Sh. Haresh Dahilkar**

(ख) पिता / पति का नाम
(b) Father's / Husband's Name

(ग) जन्म तिथि
(c) Date of Birth

(घ) राष्ट्रियता :
(d) Nationality **Indian**

(ङ) पासपोर्ट नं. जारी दिनांक जारी होने का स्थान
(e) Passport No Date of Issue Palce of Issue

(च) व्यवसाय
(f) Profession **Service**

(छ) पता - **Assistant Development Commissioner,**
(g) Address **SEEPZ-SEZ, Mumbai.**

7. ज्ञात / संदेही / अज्ञात / आरोपी का पूर्ण विवरण:
Details of known / suspected / unknown accused with full particulars
(यदि आवश्यक हो तो अलग से पन्ना संलग्न करें)
(Attached separate sheet, if necessary)

- (1) 1. Shri NPS Monga, the then Development Commissioner SEEPZ-SEZ, Andheri, Mumbai since retired in the year 2019.
- (2) 2. Shri V. P. Shukla, the then Joint Development Commissioner & Estate Manager, SEEPZ-SEZ, Andheri, Mumbai.
- (3) 3. Unknown others.

8. अभियोगी / सूचनाकर्ता द्वारा सूचना दिए जाने में विलंब का कारण :
Reasons for delay in reporting by the complainant / informant

No delay

9. अपहृत / सम्बद्ध सम्पत्ति का पूर्ण विवरण : (यदि आवश्यक हो तो अलग से पन्ना संलग्न करें)
Particulars of properties Stolen (Attach separate sheet, if necessary)

Nil

10. अपहृत / सम्बद्ध सम्पत्ति का कुल मूल्य :
Total value of property stolen

N.A.

11. मर्ग / अकाल मृत्यु सूचना क्रमांक :
Inquest Report / U. D. case No. if any

N.A.

12. प्रथम सूचना विवरण :- (यदि आवश्यक हो तो अलग से पन्ना संलग्न करें)
First information contents (Attach separate sheet, if required)

Information as per separate sheet attached.


(P. Krishnakant, IPS)
SP CBI ACB Mumbai.

INFORMATION

The complaint dated 15.11.2022 has been received from Sh. Haresh Dahilkar, Assistant Development Commissioner, Santacruz Electronics Export Processing Zone-Special Economic Zone (SEEPZ-SEZ), Andheri, Mumbai.

Sh. NPS Monga while working as Development Commissioner (DC) of SEEPZ-SEZ, Andheri, Mumbai (since retired) and Sh. VP Shukla while working as Joint Development Commissioner and Estate Manager in criminal conspiracy allotted the major work of structural repair of Standard Designed Factories (SDF) 1 to 6 buildings, Gems & Jewellery (G&J) 1 to 3 buildings & SEEPZ residential buildings and waterproofing treatment to roofs slabs of SDF 1 to 6 buildings, Gem & Jewellery (G&J) 1 to 3 buildings in the year 2016-17 to M/s. National Co-operative Construction & Development Federation of India Ltd. (NFCD) without any competitive bidding and against the General Financial Rules (GFR). The major work of SEEPZ-SEZ Authority was awarded to ineligible agency (NFCD) & work order was issued without approval of SEEPZ-SEZ Authority.

In terms of Gol OM dated 02.11.2010 read with rule 1 of General Financial Rules (GFR) 2017, provisions contained in GFR are deemed to be applicable to Central Autonomous Bodies except to the extent of the bye laws of an Autonomous Body for separate Financial Rules which have been approved by the Government. In absence of any specific provision relating to awarding of works related to Major/Minor construction/repair works in the SEZ Rules 2009, provisions of GFR is applicable to the Authority.

Further, as per sub rule 2 and 3 of Rule 133 of GFR, 2017 a Ministry or Department may, at its discretion, assign repair works estimated to cost above Rs. 30 Lakh and original/minor works of any value to any Public Works Organization (PWO) such as Central Public Works Department, State Public Works Department, other Central Government organizations authorized to carry out civil or electrical works or to any Public Sector Undertakings (PSU) set up by the Central or State Government or any other Central/State Government organization/PSU which may be notified by Ministry or Urban Development (MOUD) after evaluating their financial strength and technical competence. For award of work under the sub rule 3, competition among PSUs/organizations shall be ensured.

Audit on scrutiny revealed that SEZ Authority had awarded (February 2017) the works of structural repair and allied civil works and water proof treatment to M/s. NFCD Ltd. amounting to Rs. 74.85 Cr. An advance payment of Rs. 56.14 Cr. had been made to the agency up to December 2017. The Audit noticed that NFCD was only not on the list of agencies notified by MoUD, the selection of the agency was also done without any competitive bidding. It was seen that NFCD is an agency registered under Multi State Co-operatives Society Act 2002, Department of Agriculture and Co-operation, Ministry of Agriculture, Government of India.

The work order was issued without approval of Authority. The Authority had approved an expenditure of Rs. 40.48 Cr. including five percent contingency for structural repair and allied civil works of Standard Designed Factories (SDF) buildings and Gems and Jewellery buildings. However, NFCD was issued work order in February 2017 for Rs. 44.58 Cr. Thus, work order for an excess amount of Rs. 4 Cr. was issued without approval of the authority. Further, an additional amount of Rs. 7.77 Cr. was sanctioned for structural repairs without approval of the Authority.

Further, Weak Mechanism for Quality Control was adopted by the SEEPZ-SEZ for monitoring of aforesaid repair works. The audit observation was that Disaster Management Advisor (DMA) of the authority had inspected (November 2017) all the structural and waterproofing works of SDF and Gems and Jewellery buildings completed by NFCDs contractors. They submitted inspection report highlighting major structural discrepancies in all the buildings which included defective columns and beams and in completed work. Though the Authority had taken up the matter with NFCD several times to rectify the deficiencies, no action was taken by NFCD till the date of audit. Since no MoU was signed between the Authority and NFCD and no Bank Guarantee (BG)/ Performance Guarantee (PG) was taken, Authority could not enforce action against NFCD.

Further, LOP/LOA was issued to SEZ units without scrutinizing mandatory norms. The rule 17 and 18 of SEZ rules 2006 contains provisions regarding allotment of units in SEZ which provides for applying to the Development Commissioner for setting up of unit in SEZ inter alia with allotment of land/industrial sheds in the SEZ along with approval for water connection, Registration Cum Membership certificate (RCMC), proof of registration with Central Pollution Control Board, Power connection, Building approval plan, approval from

inspectorate of factories, pollution control clearance and NOC from fire department beside export projections and past performance, if the applicant is existing SEEPZ unit etc.

Audit noticed that the subsequent UAC held in August 2017, decided to review all allotments already made by earlier UAC on the grounds of non-fulfillment of terms and conditions laid down in the Provisional letter of SEEPZ Authority e.g. acceptance of conditions by the allottee, making of payment within stipulated time and also cases of application for additional space because of capacity enhancement on the grounds that's "there appears to be non-correlation between projected export and space allotted to the units with respect to their past performance, existing installed capacity and space utilized by them".

Thus, it is prima facie revealed that Sh. NPS Monga, the then DC, SEEPZ-SEZ, Mumbai in conspiracy with Sh. VP Shukla, JDC, SEEPZ-SEZ, Mumbai through above mentioned acts of omission and commission abused their position to obtain undue advantage for an ineligible Agency NFCD. It prima facie reveals offences U/sec. 120-B of IPC and Sec. 13(2) r/w. 13(1)(d) of PC Act, 1988 on the part of Shri N P S Monga, ITS, the then Chairperson of the SEEPZ-SEZ alongwith Shri Vijay Prakash Shukla, IRS, Estate Manager/JDC, SEEPZ-SEZ and unknown others.

The competent authority has provided permission U/s. 17 A of PC Act 1988 (As amended in 2018) against Sh. NPS Monga & Sh. V P Shukla.

Thus, a regular case has been registered and entrusted to Sh. Mohan Kumar, Inspector of Police, CBI, ACB, Mumbai.

The original complaint dated 15.11.2022 of Sh. Haresh Dahilkar, Assistant Development Commissioner, SEEPZ-SEZ, Mumbai is enclosed.


(P. Krishnakant, IPS)
Supdt. of Police
CBI, ACB, Mumbai.

13. कार्यवाही जो की गई : चूँकि उपरोक्त विवरण क्रमांक 2 में उल्लिखित धारा (ओ) के अंतर्गत घटने वाले अपराध को उद्घाटित करता है।

Action taken : Since the above information reveals commission of offence(s) u/s as mentioned at Item no. 2

- (1) मामला पंजीकृत किया गया एवं जांच प्रारम्भ हुआ अथवा
Registered the case and took up the investigation or

A Regular Case is registered

- (2) निर्देशित (जांच अधिकारी का नाम) रैंक नं. जांच हेतु लिया गया
Directed (Name of IO) Rank No. Took up for investigation

Shri. Mohan Kumar

**Inspector of Police
CBI : ACB : Mumbai**

Yes

- (3) कारण से जांच के नामंजूर अथवा
Refused investigation due to or

- (4) पुलिस थाना को स्थानांतरित किया गया जिला क्षेत्राधिकार के आधार पर
Transferred to PS District on point of jurisdiction

अभियोगी / सूचनाकर्ता को प्र.सू. पत्र पढ़ाकर / पढ़कर सुनाया गया, जिन्होंने सही-सही अभिलिखित होना स्वीकार किया। इसकी एक प्रति अभियोगी / सूचनाकर्ता को निःशुल्क प्रदान की गई।

FIR read over to the complainant/informant, admitted to be correctly recorded and a copy given to the complainant/informant, free of cost.

पढ़ कर सुनाया व सही स्वीकृत होना पाया।

R. O. A. C.

14. अभियोगी / सूचनाकर्ता के हस्ताक्षर
Signature / Thumb impression
of the complainant/informant


26/11/2024

थाना अधिकारी के हस्ताक्षर
Signature of Officer in-charge
Police Station

नाम / Name

(पद) / Rank

(P. Krishnakant, IPS)
SP CBI ACB Mumbai
No.

15. न्यायालय को भेजने का दिनांक एवं समय
Date and time of despatch to the court

(प्रभारी अधिकारी के हस्ताक्षर तारीख सहित)
Signature of recording Officer with date

प्रथम सूचना रिपोर्ट का आइटम 7 लगाएं

Attachment to item 7 of First Information Report

संदिग्ध व्यक्ति की शारीरिक विशेषताएं, विरूपता तथा अन्य विवरण :-

Physical features, deformities and other details of the suspect/accused : (If known / seen)

क्र.सं. Sl. No.	*लिंग (Sex)	*जन्म की तारीख / वर्ष Date/ year of Birth	*शारीरिक गठन (Built)	*ऊंचाई से. मी. में (Height) (in Cms)	*वर्ण (Complexion)	*पहचान चिन्ह (Identification Mark/s)
1	2	3	4	5	6	7

विरूपता/विलक्षणता (Deformities peculiarities)	दांत (Teeth)	बाल (Hair)	आँख (Eye)	आदतें (Habits)	पहनावा (Dress habit/s)
8	9	10	11	12	13

भाषा / बोली (Language / Dialect)	स्थान / Place of				
	जले का निशान (Burn mark)	श्वेत कुष्ठ (Leucoderma)	तिल (Mole)	जखम चिन्ह (Scar)	गोदना (Tattoo)
14	15	16	17	18	19

अभियोगी / सूचनाकर्ता, द्वारा संदिग्ध / अभियुक्त के बारे में एक या अधिक विवरण दिए जाने पर ही इसमें प्रविष्टि की जाए।

These fields will be entered only if complainant/informant gives any one or more particulars about the suspect/accused.

[Handwritten signature]